

Telangana Government Property (Preservation, Protection and Resumption) Act, 2007

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State of Telangana - Act

Telangana Government Property (Preservation, Protection and Resumption) Act, 2007

TELENGANA

India

Telangana Government Property (Preservation, Protection and Resumption) Act, 2007

Act 11 of 2007

Published on 26 March 2007

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Telangana Government Property (Preservation, Protection and Resumption) Act, 2007

(Act

No. 11 of 2007

)

The Andhra Pradesh Government Property (Preservation, Protection and Resumption) Act, 2007 received the assent of the President on the 26th March, 2007. The said Act in force in the combined State, as on 02.06.2014, has been adapted to the State of Telangana, under section 101 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014) vide. the Telangana Adaptation of Laws Order, 2016, issued in G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.

1.

Short title, extent and commencement.

(1)

This Act may be called the [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

Government Property (Preservation, Protection and Resumption) Act, 2007.

(2)

It extends to the whole of the State of [Telangana.]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

(3)

It shall be deemed to have come into force with effect on and from the 20th November, 2006.

2.

Annulment of certain transactions.

- With effect from the date of coming into force of this Act, the following consequences shall follow:-

(a)

the transactions as enumerated in Schedule-I and any instrument including a deed of sale, memorandum of understanding and agreement relating to property enumerated in Schedule-II entered into by or on behalf of the State of Andhra Pradesh in exercise of its executive power and which have the effect of transferring or agreeing to transfer by way of sale, lease or otherwise, the State ownership or interest therein to any private party shall stand annulled and be deemed to be void from the date on which they were entered into or executed as being unconscionable and not in public interest;

(b)

any arbitration clause forming part of any agreement being a part of such instrument as is referred to in clause (a) shall also stand annulled and be deemed to be void from its inception;

(c)

possession over property enumerated in Schedule - II shall forthwith stand resumed and restored to the Government of [Telangana;]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

(d)

all rights and liabilities arising out of or incidental to the said transaction or instrument shall cease and determine except for payment of compensation as provided by section 3.

3.

Payment of compensation.

(1)

Consequent upon the annulment of transactions and instruments under section 2, the transferee shall be entitled to be paid a reasonable compensation by the Government of [Telangana.]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

(2)

The amount of consideration recited in any instrument enumerated in Schedule I with interest calculated at the rate of 12% per annum shall be deemed to be the reasonable compensation within the meaning of sub-section (1).

4.

Overriding effect.

- The provisions of this Act shall be given effect to notwithstanding anything contained in any instrument or enactment for the time being in force.

5.

Repeal of Ordinance No.12 of 2006.

- The Andhra Pradesh Government Property (Preservation, Protection and Resumption) Ordinance, 2006 is hereby repealed.

I

(See section 2)

Transactions of property entered into by State of Andhra Pradesh annulled hereby:-

1. Memorandum of Understanding entered into on August 9, 2003 between Government of Andhra Pradesh represented by Miss Chandana Khan, Principal Secretary to Government of Andhra Pradesh for Sports, Youth Affairs, Tourism and Cultural Affairs.

And

IMG Academies Bharatha Private Limited, a company incorporated under the provisions of the Companies Act, 1956 claiming to be 100% subsidiary of IMG Academies East Limited and a part of IMG World Wide with headquarter located in Florida, USA represented by Mr.Andrew J.Krieger, Chairman, IMGB.

2. Deed of Sale executed on February 10, 2004 and registered on the same day between the Government of Andhra Pradesh represented by Vice-Chairman and Managing Director, Sports Authority of Andhra Pradesh and M/s.IMG Academies Bharatha Pvt. Ltd., in respect of 400 acres of land in Survey No.25 situate at Kancha Gachibowli village, Serilingampally Mandal, Rangareddy District more specifically described in Schedule of Property forming part of the sale deed.

3. Agreement to sell in respect of 450 acres of land situate in Survey No.99/1 of Mamidipally village, Rangareddy District near new International Airport.

4. Agreement to sell one to five acres of land in the area on the main road from Banjara Hills, Hyderabad to Shilparamam, Madhapur, Rangareddy District.

5. Agreement to lease with right to purchase the land and buildings and equipments comprised in stadia and agreement to manage and utilize SAAP facilities and share revenues.

II

(See section 2)

Description of property transferred or agreed to be transferred through transactions annulled hereby:-

1. 400 acres of land in Survey No.25 situate at Kancha Gachibowli Village, Serilingampally Mandal, Ranga Reddy District.

2. 450 acres of land in Survey No.99/1 of Mamidipally village, Ranga Reddy District, near new International Airport.

3. Stadia situate in the city of Hyderabad which include GMC Balayogi Sports Complex, Gachibowli, Indoor stadium Gachibowli, Aquatics Stadium Gachibowli, KVB Reddy Indoor Stadium, Yousufguda, Hockey Stadium Gachibowli, Indoor Stadium Saroornagar, SAAP Veldrome Osmania University, L.B. Stadium Tennis Complex and Indoor Stadium, Shooting Range, University of Hyderabad etc.

4. One to five acres of land in the area on main road from Banjara Hills, Hyderabad to Shilparamam, Madhapur, Ranga Reddy District.

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